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TENTATIVE RULING

Plaintiff Zarina Karim's Motion for a New Trial is DENIED.

Plaintiff Zarina Karim to give notice.

REASONING

Request for Judicial Notice

Defendant City of Santa Monica ("the City") requests judicial notice of four court records in this action. The City's request is GRANTED pursuant to Evidence Code section 452, subdivision (d).

Analysis

On May 8, 2026, this Court granted the City's Motion for Summary Judgment, or in the Alternative, Summary Adjudication. On May 19, 2026, Plaintiff Zarina Karim ("Plaintiff") filed a notice of intent to move for new trial; on May 26, 2026, judgment was entered in the City's favor; and the Court electronically served the Notice of Entry of Judgment on the parties on May 28, 2026. On May 29, 2026, Plaintiff filed another notice of intent to move for new trial, and on June 1, 2026, Plaintiff filed its motion for new trial on the ground that insufficient evidence justifies the decision, the decision is against law, and error of law. First, insofar as the City argues that the motion is untimely because Plaintiff failed to file her motion within 10 days of filing her notice of intent to move for new trial, Plaintiff's counsel credibly states that he attempted to file the motion on May 29, 2026, but the system was down. (Reply, Vafaei Decl. ¶¶ 2-4.)

California Rules of Court, rule 5.560(f) provides that "[c]lerical errors in judgments, orders, or other parts of the record may be corrected by the court at any time on the court's own motion or on motion of any party and may be entered nunc pro tunc."

Los Angeles Superior Court Local Rule 3.4(c) states, "Any document received electronically before midnight on a court day is deemed to have been filed on that court day if accepted for filing. Any document received on a non-court day is deemed to have been filed on the next court day if accepted for filing." While the provision is no longer in effect, the Court's prior order regarding electronic filing, Los Angeles Superior Court's First Amended General Order re: Mandatory Electronic Filing, recently rescinded in favor of Los Angeles Superior Court Local Rule 3.4, made clear in section 7(a)(i) that "[n]otwithstanding any other provision of this order, if a digital document is not filed in due course because of: (1) an interruption in service; (2) a

transmission error that is not the fault of the transmitter; or (3) a processing failure that occurs after receipt, the Court may order, either on its own motion or by noticed motion submitted with a declaration for Court consideration, that the document be deemed filed and/or that the document's filing date conform to the attempted transmission date." The Court finds that prior rule to provide guidance here, as it is clear that the Court intended to allow relief for e-filing issues in certain circumstances. These rules make it such that the Court can conclude that Plaintiff's motion is properly deemed file as of May 29, 2026, due to an interruption in service that was not the fault of Plaintiff's counsel.

Code of Civil Procedure section 657 sets forth the grounds upon which a verdict may be vacated, in whole or in part, and a new or further trial granted on all or part of the issues. "The determination of a motion for a new trial rests so completely within the court's discretion that its action will not be disturbed unless a manifest and unmistakable abuse of discretion clearly appears." (*Jiminez v. Sears, Roebuck & Co.* (1971) 4 Cal.3d 379, 387.) It is well established that "[a] motion for a new trial is appropriate following an order granting summary judgment." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 858.)

In this motion, Plaintiff argues that the case of *Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102, 107 weighed against finding a sidewalk condition of 1.75-inch displacement to be trivial as a matter of law, such that the Court's decision finding that a sidewalk displacement of one and one-half inches was trivial to be in error. Notably, the Court relied on *Stack v. City of Lemoore* in making its decision. In its ruling, the Court noted that in that case, the appellate court stated that "a holistic multifactor framework for assessing triviality" made it such that the size of the defect remained the most important of the dangerous condition factors, but it was still just one of many circumstances to be considered. (*Id.* at p. 114.) Within that framework, a height differential of one and three-quarter inches weighed against finding the sidewalk condition trivial as a matter of law, such that a strong showing of other circumstances that made the defect not dangerous was required, but in that case, the plaintiff showed that the defect had a rough edge, there were back-to-back defects, and the defect was partially obstructed with pine needles and debris. (*Id.* at pp. 114, 123.) The evidence before the Court with this motion showed only that there was a one and one-half inches height differential in the sidewalk; there were no other conditions that would support a conclusion that the condition was dangerous, such that the City could not be held liable for injury due to that condition. Specifically, while the displacement was one and one-half inches in height, the defect was not camouflaged, Plaintiff was familiar with the area, and there were no prior complaints.

In opposition to the motion for summary judgment, Plaintiff provided evidence that the City's work-order system has no standardized written measuring protocol for sidewalk inspectors, i.e., inspectors could rely on informal visual references to estimate priority for any condition, it is not clear which photographed displacement was the Priority 2 condition or which specific displacement was hot patched on June 28, 2022, and when more than one sidewalk displacements exist at a single address, the City cannot determine which specific condition was identified as hazardous or whether a particular condition was repaired. The Court found that this evidence does not weigh in favor of establishing that the condition was more than trivial, i.e., Plaintiff focused on notice, she provided no evidence that the condition was concealed in any way or that there were broken pieces in the area, Plaintiff testified that she frequently walked in this area, the incident occurred at 3:00 p.m., and the defect had not caused another incident like the one alleged here. Thus, while the size of the defect was the most important factor for the Court to consider, it was not the only factor, and Plaintiff provided no other evidence to support a conclusion that the defect is dangerous as a matter of law.

Put simply, Plaintiff is seeking a second bite at the proverbial apple in this motion, making the same arguments already considered and rejected by the Court in its prior ruling. Again, the one and one-half height differential alone did not create a triable issue of material fact that the displacement was more than trivial given the total lack of other conditions that would weigh in favor of finding that the displacement was a dangerous condition. It follows that Plaintiff has failed to provide a basis for the Court to reverse its prior ruling. Accordingly, Plaintiff Zarina Karim's Motion for a New Trial is DENIED.